

23NWCV02348 23NWCV02348

County: los-angeles

Division: Civil Law and Motion

Department: R

Hearing date: 2026-08-18

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CR%2C08%2F18%2F2026

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Case Number: 23NWCV02348 Hearing Date: August 18, 2026 Dept: R

#18

GALICIA, ET AL. v.

HAWAIIAN GARDENS CASINO, ET AL.

CASE NO.: 23NWCV02348

HEARING: Tuesday, August
18, 2026, at 9:30 AM

Defendant HAWAIIAN GARDENS CASINO's Motion for Summary
Judgment is DENIED.

Defendant HAWAIIAN
GARDENS CASINO's Motion for Summary Adjudication is DENIED.

Moving Party to give notice.

Background

On January 31, 2024, Plaintiffs MARIA DE GALICIA; CYNTHIA CROWELL; and THE ESTATE OF ANACLETO GONZALES DE GALICIA, by and through its Successor-in-Interest, MARIA DE GALICIA filed this premises liability action against Defendants HAWAIIAN GARDENS CASINO, dba THE GARDENS CASINO ("Casino"); JUANITO GUEVARRA PARAM ("Param"); and DOES 1 through 50, inclusive.

On December 26, 2024, Plaintiffs CYNTHIA CROWELL and THE ESTATE OF ANACLETO GONZALES DE GALICIA, by and through its

Successor-in-Interest CYNTHIA CROWELL (collectively, "Plaintiffs") filed the operative First Amended Complaint.

Plaintiffs' FAC asserts the following causes of action:

(1) Negligence
and

(2) Premises
Liability

Plaintiffs' FAC alleges, in pertinent part, that Defendant Param struck Decedent ANACLETO GONZALES DE GALICIA ("Decedent") within Defendant Casino's parking lot ("Subject Lot"). (FAC ¶ 10.) Plaintiffs allege Decedent died shortly thereafter. (FAC ¶ 10.) Plaintiffs further allege the Subject Lot was not adequately marked or signed for traffic control, nor adequately lit with parking lot lighting.

On March 16, 2026, Defendant Casino brought the instant Motion for Summary Judgment arguing that (1) Defendant Casino did not owe Plaintiffs a Duty of Care; (2) even if Defendant Casino owed a duty of care, Plaintiffs cannot prove breach; and (3) Defendant Casino's conduct was not the proximate cause of Decedent's injury.

Procedural Issues

Defendant Casino's Separate Statement fails to comply with CRC 3.1350(b) and (h) as it failed to set forth the specific causes of action and/or issues to be adjudicated in the separate statement. Defendant Casino's Separate Statement only references Plaintiffs' negligence cause of action.

The Court was able to discern which facts corresponded to each of Defendant Casino's argument(s). The Court therefore waives this procedural defect. Defendant Casino is reminded to submit any further separate statement in conformity with the local rules.

Legal Standard

The purpose of a motion for summary judgment "is to provide courts with a mechanism to cut through the parties' pleadings in order to

determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atl. Richfield Co. (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established.” (Code Civ. Proc., § 437c(p)(2).) “Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Id.) “If the plaintiff cannot do so, summary judgment should be granted.” (Avivi v. Centro Medico Urgente Med. Ctr. (2008) 159 Cal.App.4th 463, 467.)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi, supra, 159 Cal.App.4th at p. 467; see also Code Civ. Proc., § 437c, subd. (c).)

Discussion

Negligence and Premises Liability

“To succeed in a negligence action, the plaintiff must show that (1) the defendant owed the plaintiff a legal duty, (2) the defendant breached the duty, and (3) the breach proximately or legally caused (4) the plaintiff's damages or injuries. (Thomas v. Stenberg (2012) 206 Cal.App.4th 654, 662.)

Premises liability shares its elements with negligence: duty, breach, causation, and damages. (Castellon v. U.S. Bancorp (2013) 220 Cal.App.4th 994, 998.) Premises liability is simply a species of negligence “grounded in the possession of [a] premises and the attendant right to control and manage the premises.” (Kesner v. Superior Court (2016) 1¿Cal.5th 1132, 1158, quotation marks omitted.) The theory relies on a crucial premise: that the defendant in a premises liability action owns or controls the property on which a plaintiff’s injury took place. (Martin v. Gladston (2023) 96 Cal.App.5th 681, 689 [collecting precedents]; Kinsman v. Unocal Corp. (2005) 37 Cal.4th 659, 672 [“proper test” is reasonable care in “management of [one’s] property”]; Soto v. Union Pacific Railroad Co. (2020) 45 Cal.App.5th 168, 177.)

Dangerous Condition

“The owner of premises is under a duty to exercise ordinary care in the management of such premises to avoid exposing persons to an unreasonable risk of harm. A failure to fulfill this duty is negligence.” (Brooks v. Eugene Burger Management Corp. (1989) 215 Cal.App.3d 1611, 1619; Annocki v. Peterson Enterprises, LLC (2014) 232 Cal.App.4th 32, 37.) “‘Liability is particularly appropriate where the landowner has actual knowledge of the danger, e.g., where he has created the condition.’ [Citation.]” (Robison v. Six Flags Theme Parks Inc. (1998) 64 Cal.App.4th 1294, 1304.)

To establish liability for negligence, “[t]here must be some evidence . . . to support the conclusion that the condition had existed long enough for the proprietor, in the exercise of reasonable care, to have discovered and remedied it.” (Girvetz v. Boys’ Market (1949) 91 Cal.App.2d 827, 829; Ortega, supra, 26 Cal.4th at p. 1206 [the owner must have had actual or constructive knowledge of the dangerous condition or have had the ability, through the exercise of ordinary care, to discover it, and sufficient time to correct it].) The plaintiff has the burden because “shifting the burden to defendant would, contrary to existing negligence law, permit an inference of negligence to be drawn against the owner based solely on the fact that the fall or accident occurred.” (Ibid.)

Where a plaintiff produces evidence from which a reasonable inference can be drawn that the dangerous condition was created by defendant or its employees, defendant is charged with notice of the dangerous condition. (Getchell v. Rogers Jewelry (2012) 203 Cal.App.4th 381, 382.) However, “[t]he plaintiff need not show actual knowledge where evidence suggests that the dangerous condition was present for a sufficient period of time to charge the owner with constructive knowledge of its existence.” (Ortega, supra, 26 Cal.4th at p. 1206.) “The exact time the condition must exist before it should, in the exercise of reasonable care, have been discovered and remedied, cannot be fixed, because, obviously, it varies according to the circumstances.” (Louie v. Hagstrom’s Food Stores (1947) 81 Cal.App.2d 601, 608.) Typically, the question of whether a condition existed so long as to be discoverable within a reasonable time is a question of fact to be decided by the jury. (Hatfield v. Levy Bros. (1941) 18 Cal.2d 798, 807; Tuttle v. Crawford (1936) 8 Cal.2d 126, 130; Rothschild v. Fourth & Market St. Realty Co. (1934) 139 Cal.App. 625, 627.)

However, if there is no substantial evidence from which it can be reasonably inferred that the condition existed for a sufficient period of time to charge the defendant with constructive notice of its presence and to remedy the condition, a defendant may be entitled to judgment as a matter of law. (Perez v. Ow (1962) 200 Cal.App.2d 559, 562.)

Defendant Casino offers the following evidence to show it did not have knowledge of a dangerous condition:

.

When Defendant Casino constructed the Subject Lot, Defendant Casino installed 125W LED bulbs in each light pole throughout the Subject Lot. (Undisputed Material Facts, Issue 1 “UMF1” No. 11.)

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These LED bulbs have functioned properly and have not required changing since installation. (UMF1 No. 12.)

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Defendant Casino also installed surveillance cameras throughout the parking lot, including at each end of every parking row.

(UMF1 No. 13.)

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Defendant Casino has a competent, experienced security staff that is responsible for overseeing the safety of the parking lot. Additionally, Defendant Casino employs a group effort amongst various departments, including security, maintenance, and surveillance to ensure that no dangerous conditions exist and any hazards are immediately addressed. (UMF1 No. 14.)

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Defendant Casino equipped its parking lot with reasonable safety precautions, including but not limited to adequate traffic control devices, speed bumps, lighting, and a dedicated pedestrian way. (UMF1 No. 15.)

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Defendant Casino has not received a single complaint or been made aware of any incidents since completion of the current parking lot in which the parking lot lighting, design, or signage was alleged to have created a hazard or caused an accident, and is unaware of any fatal accidents in its parking lot. (UMF1 No. 17.)

Defendant Casino met its initial burden to show there is no evidence of a dangerous condition and Defendant Casino did not know any dangerous condition.

In opposition, Plaintiff offers Brad P. Avrit's Declaration.

Mr. Avrit is a licensed Civil Engineer and a Senior Forensic Expert at Aperture. (Plaintiffs' Ex. A.) Mr. Avrit had analyzed more than 15,000 premises liability cases and has extensive experience in proper implementation and configuration of parking lots. (Id.)

Mr. Avrit opines the following opinions regarding the existence of a dangerous condition:

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The incident area was located at a marked crosswalk between two landscaped barriers with trees and a designated walkway for pedestrians. This created a complex, uncontrolled intersection where

multiple vehicular movements and pedestrian traffic converged. (Avrit Decl., ¶ 7.)

The complex intersection lacked adequate traffic control devices, including a stop sign, requiring drivers to stop before initiating the left turn. (Avrit Decl., ¶ 8.) Defendant Param testified he saw no traffic lights, stop signs, pavement markings, or pedestrian-warning signage anywhere in the area, and that the lighting in the area was “kind of dim... not too bright.” (Param Depo. at p. 33:14-36:9.)

The addition of stop signs, pedestrian crosswalk signs, and flashing pedestrian crosswalk lights, would increase the visibility and advanced warnings for drivers that pedestrians are present in the area. Moreover, the pedestrian crosswalk lacked sufficient visual emphasis due to the faded pavement markings. (Avrit Decl., ¶ 8.) A properly marked crosswalk would aid drivers in identifying pedestrians crossing through the incident area, especially at night. (Id.)

Defendant HGC failed to provide a reasonably safe pedestrian circulation system despite the foreseeable pedestrian traffic. As seen in the surveillance videos, pedestrian traffic was present throughout the parking lot. Based on the design of the parking lot, it is foreseeable that pedestrians would traverse the parking lot aisles, near and on the marked crosswalks, and various other areas leading to and from the entrance of the Property. Pedestrians must cross two lanes of traffic to access the designated walkway. (Avrit Decl., ¶ 9.)

The Court finds there is a triable issue regarding evidence of a dangerous condition. Indeed, Plaintiffs presented evidence that the intersection where the Subject Accident occurred was complex and uncontrolled. Indeed, the intersection lacked stop signs, pedestrian-warning sign, and conspicuous crosswalk markings. Although there was a pedestrian crosswalk, the crosswalk was faded and Defendant Param stated that the lighting in the area was dim and not too bright.

Regarding notice, Defendant Casino's Security Manager testified December 12, 2018, a vehicle struck another pedestrian in the same crosswalk

where the Subject Accident took place. (Sanchez Depo. at p. 77:1:20.)

Defendant argues that in the December 12, 2018, accident, the pedestrian was using the crosswalk, and thus that incident is distinguishable. The Court finds this is a distinction without a difference for purposes of notice. The evidence shows that the crosswalk was faded and inadequately maintained, and the intersection lacked adequate traffic control devices and signage at the time of both incidents.

The dangerous condition, a lack of conspicuous crosswalk markings and traffic controls, was present regardless of whether the pedestrian was strictly within the crosswalk. Thus, the December 2018 incident provided Defendant with actual notice of the hazard(s) that contributed to the Subject Accident. Whether Defendant's response to this notice was reasonable is a question for the jury.

Duty

The question of duty is decided by the court, not the jury. (Thai v. Stang (1989) 214 Cal.App.3d 1264, 1271.) In the typical negligence action, a determination that there is no duty giving rise to liability is essentially a conclusion that the weight of public policy warrants a departure from Civil Code section 1714. (Ibid.)

California law requires landowners to maintain land in their possession and control in a reasonably safe condition. (Ann M. v. Pacific Plaza Shopping Ctr. (1993) 6 Cal.4th 666, 674, 25 Cal.Rptr.2d 137, 863 P.2d 207, disapproved of in part on other grounds in Reid v. Google, Inc. (2010) 50 Cal.4th 512, 522.) Landowners are liable for injuries caused by a lack of due care in the maintenance of their property. (Davert v. Larson (1985) 163 Cal.App.3d 407, 410.)

A landowner's liability for injuries to person on the property depends on the balancing of a number of factors, particularly the foreseeability of harm to the plaintiff, the degree of certainty that the plaintiff suffered injury, the closeness of the connection between the defendant's conduct and the injury suffered, the moral blame attached to the defendant's conduct, the policy of preventing future harm, the extent of the burden to the defendant, and the consequences to the community of imposing a duty to exercise care with resulting liability for breach, and the

availability, cost, and prevalence of insurance for the risk involved. (Wiener v. Southcoast Childcare Centers, Inc. (2004) 32 Cal.4th 1138, 1145.)

Defendant Casino contends it did not owe Plaintiff a Duty of Care because the Subject Incident was not foreseeable. Defendant Casino contends there have not been substantially similar prior accidents and that Defendant Param failed to operate his vehicle prudently. Defendant Casino offers the following evidence to support its contention:

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Defendant Casino has not received a single complaint or been made aware of any incidents since completion of the current parking lot in which the parking lot lighting, design, or signage was alleged to have created a hazard or caused an accident, and is unaware of any fatal accidents in its parking lot. (Undisputed Material Facts Issue 2 “UMF2” No. 17.)

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The Court also reincorporates the evidence relied on in Issue 1: Dangerous Condition.

The Court will not depart from the general rule holding landowners are liable for injuries caused by a lack of due care in the maintenance of their property.

As noted above, in December 2018, a vehicle struck a pedestrian in the same crosswalk where the Subject Accident occurred. The Court already dismissed Defendant’s distinction without a difference that in the December 2018 incident, the pedestrian used the crosswalk.

Defendant Casino further argues that in December 2018, the driver was unable to see anyone in the crosswalk because his windshield was not defrosted. (UMF2 No. 18.) However, the incident report merely states that the driver, “pointed out his windshield was not defrosted and obstructed his vision.” (Hewitt Decl., Ex. 4.) Whether a lack of traffic signals, adequate lighting, and properly painted crosswalk contributed to the accident remained unaddressed. In other words, it is unclear whether the frosted windshield or the dangerous condition caused the accident.

Even assuming the frosted windshield played a role in the December 2018 accident, there is ample evidence of a lack of traffic signals, faded crosswalk markings, and inadequate pedestrian controls at the subject intersection. This raises a triable issue as to whether Defendant should have implemented proper signals and devices to prevent further accidents.

Breach

“The default standard of care is the obligation to take ‘reasonable care’ [citations], although a statute a statute may define a more specific obligation [citations] and, under the doctrine of negligence per se, may erect a rebuttable presumption of breach if that obligation is not met.” (*Issakhani v. Shadow Glen Homeowners Assn., Inc.* (2021) 63 Cal.App.5th 917, 934–935.) “The standard of care is relevant only if there is a duty of care for it to impose. The standard of care presupposes a duty; it cannot create one.” (*Id.* at p. 935.)

Defendant Casino argues there is no breach because it maintained its parking lot in a reasonably safe manner. The Court reincorporates the evidence relied up for Defendant Casino's First Issue (Dangerous Condition) in which Defendant Casino showed: (1) Defendant Casino installed 125W LED bulbs in each light pole throughout the parking lot; (2) Defendant Casino installed surveillance cameras throughout the parking lot; (3) Defendant Casino has a competent, experienced security staff that is responsible for overseeing the safety of the parking lot; and (4) Defendant Casino equipped its parking lot with reasonable safety precautions, including but not limited to adequate traffic control devices, speed bumps, lighting, and a dedicated pedestrian way that me the standard of care.

Defendant Casino met its initial burden to show it acted reasonably under the circumstances.

In opposition, Plaintiffs offered sufficient evidence to show there is a triable issue on whether Defendant acted reasonably. Indeed, Mr. Avrit opines the following:

(1) The complex intersection lacked adequate traffic control devices, including a stop sign, requiring drivers to stop before initiating the left turn. (Avrit Decl.,

¶ 8.)

(2) The

addition of stop signs, pedestrian crosswalk signs, and flashing pedestrian crosswalk lights, would increase the visibility and advanced warnings for drivers that pedestrians are present in the area. (Id.)

(3) Figure

3 above, taken during Aperture's site inspection, shows the crosswalk even more faded and worn than the time of incident. A properly marked crosswalk would aid drivers in identifying pedestrians crossing through the incident area, especially at night. (Id.)

(4) Defendant

Casino failed to provide a reasonably safe pedestrian circulation system despite foreseeable pedestrian traffic throughout the parking lot. (Avrit Decl., ¶ 9.)

The Court finds a triable issue exists as to whether Defendant Casino acted reasonably under the circumstances. Indeed, Defendant Casino argues its implemented safety features were sufficient, whereas Plaintiffs expert opines that Defendant Casino's intersection lacked adequate safety control devices. A triable issue remains as to whether Defendant Casino provided a reasonably safe pedestrian circulation system.

Proximate Cause

Lastly, Defendant Casino argues its conduct was not the proximate cause of Decedent's injury. Defendant Casino argues that Decedent and Defendant Param's unreasonable conduct caused the accident, creating multiple superseding causes.

"A superseding cause relieves a defendant from tort liability for a plaintiff's injuries, if both the intervening act and the results of the act are not foreseeable." (Ash v. North American Title Co., (2014) 223 Cal.App.4th 1258, 1274.)

"Whether an intervening force is superseding or not generally presents a question of fact, but becomes a matter of law where only one reasonable conclusion may be reached." (Chanda

v. Federal Home Loans Corp. (2013) 215 Cal.App.4th 746, 756.) Crimes and other intentional acts by third parties can be foreseeable. (Ibid. [“the submission of forged loan documents was highly foreseeable”]; Rosh v. Cave Imaging Systems, Inc. (1994) 26 Cal.App.4th 1225, 1236 [defendant liable for “lax” security when third-party shot plaintiff].)

Further, “when a defendant’s negligence is based upon his or her having exposed the plaintiff to an unreasonable risk of harm from the actions of others, the occurrence of the type of conduct against which the defendant had a duty to protect the plaintiff cannot properly constitute a superseding cause that completely relieves the defendant of any responsibility for the plaintiff’s injuries.” (Lugtu v. California Highway Patrol (2001) 26 Cal.4th 703, 725.)

Defendant Casino contends there is no evidence that its conduct was the proximate cause of Decedent’s injury because (1) it meet the standard of care and (2) Decedent’s and Defendant Param’s unreasonable conduct makes it unreasonable under the circumstances to suggest that Defendant Casino contributed to the accident. (UMF1 Nos. 15-16.)

As noted above, a triable issue remains as to whether Defendant Casino breached its duty of care.

Further, Mr. Avrit concluded that, “Based on the foregoing, and on my background, training, and experience analyzing numerous similar incidents, it is my opinion that the unsafe design and operation of the parking lot was a substantial contributing factor in Decedent’s incident. As previously mentioned, the incident was not caused solely by the results of driver error and Decedent’s pathway. The parking lot required drivers to divide their attention among numerous competing tasks while simultaneously turning through a pedestrian crossing area. The absence of adequate traffic control devices, lack of proper warnings, and deficiencies in pedestrian circulation increased the likelihood that a driver would fail to detect a pedestrian. The culmination of these factors were substantial factors contributing to the incident. Had Defendant HGC proactively installed appropriate traffic safety or engineering measures, it is more likely than not that the incident could have been avoided. (Avrit Decl., ¶ 14.)

The Court finds triable issues remains as to proximate

cause.

CONCLUSION

Defendant Casino's

Motion for Summary Judgment is DENIED. Defendant's Motion for Summary Adjudication is DENIED.

Defendant's Request for Judicial Notice is DENIED. (Evid.

Code 452(d) is limited to court records from California courts, federal courts, or courts of other states, and does not extend to all records from any state entity.)

Plaintiffs' Objections Nos. 1-4 to Philip Hewitt's Declaration are OVERRULED.

Plaintiffs' Objections Nos. 1-6 and 8 to Vander Helm's Declaration are OVERRULED.

Plaintiffs' Objection No. 7 to Vander Helm's Declaration is SUSTAINED.

(Cal. Evid. Code § 801, improper expert opinion.)